

1.

CASE #	CASE NAME	HEARING NAME
CVRI2503378	GOMEZ-PADILLA VS THE VONS COMPANIES, INC.	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling:

GRANT the Motion for Summary Judgment/Summary Adjudication. SUSTAIN Defendant's evidentiary objections to the Declaration of Plaintiff Nathalia Elizabeth Gomez-Padilla. DENY Plaintiff's request for a continuance under CCP § 437c(h).

Defendant has established, through admissible evidence, that Plaintiff slipped and fell on spilled yogurt at Defendant VONS market. The spill that allegedly caused Plaintiff's fall was created by a third-party customer, not by VONS or its employees. Surveillance video shows that the yogurt container fell and created the spill at 8:41:45am, and that Plaintiff slipped at 8:43:33am—a total elapsed time of one minute and forty-eight seconds. During the brief time between the spill and the fall, no VONS employee is seen in the area, and there is no evidence that a VONS employee was alerted to the spill. For Plaintiff to prevail on a negligence and premises liability claim, Plaintiff must show that Defendant had actual notice or constructive notice of the dangerous condition. In cases involving a "slip and fall" on a foreign substance, there is no causation unless plaintiff can prove that the owner had either actual or constructive notice of the dangerous condition and failed to remediate the condition within a reasonable amount of time. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200.) In Opposition, Plaintiff contends that VONS fails to meet its burden on Summary Judgment because it does no more than argue that Plaintiff lacks evidence establishing notice, but VONS does more than point to the absence of evidence. It has submitted affirmative evidence addressing the creation, duration and notice of the condition. Hence, VONS meets its initial burden on Summary Judgment/Summary Adjudication. The burden now shifts to Plaintiff to show a triable issue of material fact.

Plaintiff fails to establish a triable issue as to *actual* notice. Plaintiff offers no evidence that a VONS employee observed the spill before Plaintiff fell. Instead, Plaintiff speculates that an unidentified customer who returned to the fall site with napkins "may have" informed an employee. Inferences offered in opposition cannot be derived from speculation, conjecture, imagination, or guesswork. (*Joseph E. Di Loreto, Inc. v. O'Neill* (1991) 1 Cal.App.4th 15.)

There is no triable issue of *constructive* notice. Unlike *Ortega*, which allows the jury to infer that the condition existed for a sufficiently long enough time to permit the defendant to discover the condition, here, no such inference concerning duration is necessary. The surveillance video establishes when the yogurt was dropped and when Plaintiff subsequently slipped on it. Plaintiff must present evidence from which a reasonable trier of fact could conclude that, under the circumstances, ordinary care required VONS to discover the newly created spill during the brief interval between spill and fall. Plaintiff has not done so.

The remaining arguments raised by Plaintiff (challenge to the surveillance video, captioning error in the Torres Declaration, absence of a warning, sweep sheet records) do not create any triable issues.

Summary Adjudication is Granted as to the 1st cause of action for negligence and the 4th cause of action for premises liability, as Defendant has established that it did not have actual or constructive notice of the dangerous condition. Summary Adjudication is also Granted as to the 2nd cause of action for negligent hiring and the 4th cause of action for negligent supervision. Plaintiff cannot establish causation. No alleged deficiency in hiring, training, or supervision could have been a substantial factor in causing Plaintiffs injuries because no employee had a reasonable opportunity to discover and remedy the condition before the incident occurred. Plaintiff's negligent hiring and supervision claims fail as a matter of law. Grant Summary Adjudication as to the 2nd and 4th causes of action. Summary Adjudication is also granted as to the 5th cause of action for vicarious liability. Plaintiff cannot demonstrate actionable negligence by a VONS employee. Without a triable issue as to an underlying tort committed by an employee acting within the scope of his employment, this claim fails. Grant Summary Adjudication of the 5th cause of action.

GRANT the Motion for Summary Judgment.

Plaintiff's request for a continuance under CCP § 437c(h) is denied because Plaintiff's counsel fails to submit a declaration in support of the request. Plaintiff is required to make an evidentiary showing that essential facts may exist to support the opposition to the motion for summary judgment but cannot presently be presented.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2503833	COX VS FINANCE OF AMERICA REVERSE LLC	MOTION TO BE RELIEVED AS COUNSEL FOR KEITH COX

Tentative Ruling:

GRANT.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507406	TABEL VS TOYOTA MOTOR SALES U.S.A., INC	MOTION TO COMPEL PLAINTIFF GHASAN TABEL'S DEPOSITION

Tentative Ruling:

Continue the Motion to 9/29/2026, 8:30am, D-4. If the Plaintiff's deposition goes forward on 9/17/2026, Defendant is Ordered to take this Motion off calendar. No Sanctions will be awarded. If the deposition does not go forward, Defendant to file a Declaration at least 5 days before the continued hearing date explaining why the deposition did not go forward.